

26CV01479 James F Scafide vs Anthony Castelo

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-07-10

Motion: Demurrer and Motion to Strike

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Tentative Ruling: James F Scafide vs Anthony Castelo

Case Number

26CV01479

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 07/10/2026 - 10:00

Nature of Proceedings

Demurrer and Motion to Strike

Tentative Ruling

(1) The hearing on the demurrer and motion to strike are continued to September 4, 2026, to permit effective service. On or before July 17, 2026, plaintiff Scafide shall give notice of this continued hearing and file proof of service of this order with the court.

(2) Attorney James F. Scafide shall appear at the hearing of this matter on July 10 and provide an explanation as to the spurious matters appearing in the moving papers as discussed herein.

Background:

On March 5, 2026, plaintiff James F. Scafide, as successor trustee of the Jill Dore Kent Living Trust, (Scafide) filed a verified complaint in this matter against defendant Anthony Castelo alleging causes of action for breach of contract, voluntary waste,

and declaratory relief.

On March 30, 2026, Castelo filed an answer to the complaint admitting and denying allegations and asserting certain affirmative defenses.

On April 9, 2026, Castelo filed a verification to the answer.

On April 10, 2026, Scafide filed a demurrer to the answer asserting certain deficiencies. Scafide concurrently filed a motion to strike the answer. The demurrer and motion to strike were served on Castelo only by electronic means.

No opposition or other response has been filed to the demurrer or motion to strike.

Analysis:

(1) Service

Defendant Castelo is self-represented. Electronic service may be made on a self-represented person only by consent. (Code Civ. Proc. § 1010.6, subd. (c).) Castelo has not filed a consent to electronic service with the court. Castelo's answer does not provide an electronic service address. The demurrer and motion to strike were served solely by electronic means. Consequently, there is no effective service of the demurrer and motion to strike. The court will continue the hearing on the demurrer and motion to strike for sufficient time to permit effective service and responses.

(2) Other issues

In reviewing the demurrer, the court has noted certain irregularities in the moving papers. In particular, the court notes that the demurrer is asserted against both an affirmative defense of "Uncertainty of Bankruptcy (Defense #22)" and an affirmative defense of "Inapplicability of Tort Defenses (Defense #5)," the latter of which is further described as "Responsibility of Others." (Demurrer, at p. 3.) The check-the-box answer includes an affirmative defense based on bankruptcy, but the box for that affirmative defense is not checked. There does not appear to be a "Responsibility of Others" affirmative defense existing in the answer, even unchecked. Moreover, the affirmative defenses are not numbered, making the citation difficult to understand. (Note: The check-the-box form used as attachment 4 to the answer is not an official form and therefore subject, among other things, to the requirement to number the defenses (Cal. Rules of Court, rule 2.112(1).))

The court requires an explanation as to how and why these spurious items appear in the moving papers, and particularly whether AI was involved in creating or editing these papers. To the extent these spurious items are AI generated errors, the court may consider issuing an order to show cause re sanctions pursuant to Code of Civil Procedure section 128.7 if the papers are not withdrawn.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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